ATTORNEY OR PARTY WITHOUT ATTORNEY: STATE BAR NO.:
NAME: Brendan Ngwa Nforbi
FIRM NAME:
STREET ADDRESS: 1455 Cat Tail Drive
CITY: Stockton STATE: CA ZIP CODE: 95204
TELEPHONE NO.: FAX NO.:
EMAIL ADDRESS: bnn.cdl@gmail.com
ATTORNEY FOR (*name*):

FOR COURT USE ONLY

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN JOAQUIN
STREET ADDRESS: 180 E. Weber Avenue
MAILING ADDRESS: 180 E. Weber Avenue
CITY AND ZIP CODE: Stockton, CA 95202
BRANCH NAME: Stockton Courthouse

PLAINTIFF: BRENDAN NGWA NFORBI
DEFENDANT: DIAMOND TRUCK SALES, INC., a California corporation, et al.

JUDGMENT

☐ **By Clerk** ☒ **By Default** ☐ **After Court Trial**
☒ **By Court** ☐ **On Stipulation** ☐ **Defendant Did Not Appear at Trial**

CASE NUMBER:
STK-CV-UF-2026-0001094

JUDGMENT

1. ☒ **BY DEFAULT**
   a. Defendant was properly served with a copy of the summons and complaint.
   b. Defendant failed to answer the complaint or appear and defend the action within the time allowed by law.
   c. Defendant's default was entered by the clerk upon plaintiff's application.
   d. ☐ **Clerk's Judgment** (Code Civ. Proc., § 585(a)). Defendant was sued only on a contract or judgment of a court of this state for the recovery of money.
   e. ☒ **Court Judgment** (Code Civ. Proc., § 585(b)). The court considered
      (1) ☒ plaintiff's testimony and other evidence.
      (2) ☒ plaintiff's written declaration (Code Civ. Proc., § 585(d)).
2. ☐ **ON STIPULATION**
   a. Plaintiff and defendant agreed (stipulated) that a judgment be entered in this case. The court approved the stipulated judgment and
   b. ☐ the signed written stipulation was filed in the case.
   c. ☐ the stipulation was stated in open court ☐ the stipulation was stated on the record.
3. ☐ **AFTER COURT TRIAL.** The jury was waived. The court considered the evidence.
   a. The case was tried on *(date and time):*
      before *(name of judicial officer):*
   b. Appearances by
      ☐ plaintiff *(name each):*
      (1)
      (2)
      ☐ Continued on Attachment 3b.
      ☐ plaintiff's attorney *(name each):*
      (1)
      (2)
      ☐ defendant *(name each):*
      (1)
      (2)
      ☐ Continued on Attachment 3b.
      ☐ defendant 's attorney *(name each):*
      (1)
      (2)
   c. ☐ Defendant did not appear at trial. Defendant was properly served with notice of trial.
   d. ☐ A statement of decision (Code Civ. Proc., § 632) ☐ was not ☐ was requested.

Form Approved for Optional Use
Judicial Council of California
JUD-100 [Rev. January 1, 2025]

Code of Civil Procedure, §§ 585, 664.6
www.courts.ca.gov

PLAINTIFF: **BRENDAN NGWA NFORBI**	CASE NUMBER:
DEFENDANT: DIAMOND TRUCK SALES, INC., a California corporation, et al.	STK-CV-UF-2026-0001094

JUDGMENT IS ENTERED BY [X] THE COURT [ ] THE CLERK AS FOLLOWS:

4. [ ] **Stipulated Judgment.** Judgment is entered according to the stipulation of the parties.
5. **Parties.** Judgment is
   a. [X] for plaintiff *(name each):* Brendan Ngwa Nforbi
      and against defendant *(names):* Diamond Truck Sales, Inc., a California corporation; Alpine Truck Sales, Inc., a California corporation
      [ ] Continued on Attachment 5a.
   b. [ ] for defendant *(name each):*
   c. [ ] for cross-complainant *(name each):*
      and against cross-defendant *(name each):*
      [ ] Continued on Attachment 5c.
   d. [ ] for cross-defendant *(name each):*
6. **Amount.**
   a. [X] Defendant named in item 5a above must pay plaintiff on the complaint

(1) [X] Damages	$ 78,671.20
(2) [X] Prejudgment interest at the annual rate of 7 %	$ 4,302.55
(3) [X] Attorney fees	$ 0
(4) [X] Costs	$ 0
(5) [ ] Other *(specify):*	$
(6) **TOTAL**	$ **82, 973.75**

   b. [ ] Plaintiff to receive nothing from defendant named in item 5b.
      [ ] Defendant named in item 5b to recover costs: $
      [ ] and attorney fees: $
   c. [ ] Cross-defendant named in item 5c above must pay cross-complainant on the cross-complaint

(1) [ ] Damages	$
(2) [ ] Prejudgment interest at the annual rate of %	$
(3) [ ] Attorney fees	$
(4) [ ] Costs	$
(5) [ ] Other *(specify):*	$
(6) **TOTAL**	$

   d. [ ] Cross-complainant to receive nothing from cross-defendant named in item 5d.
      [ ] Cross-defendant named in item 5d to recover costs: $
      [ ] and attorney fees: $
7. [ ] Judgment debtor is a natural person, and as provided in the relevant statute,
   $ of this judgment is on a claim related to medical expenses (Code Civ. Proc., §§ 683.110, 685.010)
   $ of this judgment is on a claim related to personal debt (Code Civ. Proc., §§ 683.110, 685.010), which includes: $ concerning consumer debt (Code Civ. Proc., § 708.111).
8. [X] Other *(specify):*
   The April 4, 2023 purchase transaction between Plaintiff and Diamond Truck Sales, Inc. is rescinded. Defendant Alpine Truck Sales, Inc. is jointly and severally liable with Diamond Truck Sales, Inc. as Diamond's successor, mere continuation, alter ego, and/or fraudulent transference. Plaintiff is awarded restitution of all monies paid as set forth above. Any "as-is" disclaimer is unenforceable. The Clerk is directed to enter this judgment.

Date: [ ] _____
JUDICIAL OFFICER

Date: [ ] Clerk, by _____ , Deputy

(SEAL)

CLERK'S CERTIFICATE *(optional)*
I certify that this is a true copy of the original judgment on file in the court.

Date:

Clerk, by _____ , Deputy

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